

The Rajasthan Civil Services (Commutation of Pension) Rules, 1981

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State of Rajasthan - Act

The Rajasthan Civil Services (Commutation of Pension) Rules, 1981

RAJASTHAN

India

The Rajasthan Civil Services (Commutation of Pension) Rules, 1981

RULE THE-RAJASTHAN-CIVIL-SERVICES-COMMUTATION-OF-PENSION-RULES-1981 of 1981

Published on 14 October 1982

Commenced on 14 October 1982

[This is the version of this document from 14 October 1982.]

[Note: The original publication document is not available and this content could not be verified.]

The Rajasthan Civil Services (Commutation of Pension) Rules, 1981

Published vide Notification No. G.S.R. 79 dated June 22, 1981, first published in Rajasthan Gazette, Part 4-C (1) Ordinary, dated 14-10-1982

In exercise of the powers conferred by the proviso to Article 309 of the Constitution, the Governor hereby makes the following rules, namely :-

Chapter-I Preliminary

1.

Short title & Commencement.

(1)

These rules may be called the Rajasthan Civil Services (Commutation of Pension) Rules, 1981.

(2)

They shall come into force on the 1st July, 1981.

2.

Application.

- These rules shall apply to Government servants who may be entitled to or have been granted any class of pension referred to in Chapter XX of the Rajasthan Service Rules, Volume I-Part B.

3.

Definition.

(1)

In these rules, unless the context otherwise requires :-

(a)

["Director, Pension Department" means the Director, Pension Department, Rajasthan, Jaipur.]

[Substituted vide F.D. Notification No. F. 1 (45) FD (Gr. 2)/83, dated 17.1.1984. Effective from 1-12-1983.]

(b)

"applicant" means a Government servant, including a retired Government servant, who applies for commutation of fraction of pension in the prescribed form.

(c)

"death-cum-retirement gratuity" means the gratuity payable under Rule 257 of Rajasthan Service Rules.

(d)

"disbursing authority" means:-

(i)

branch of a nationalised bank, or

(ii)

treasury including sub-treasury, or

(iii)

Pension Payment Officer

from where the applicant is receiving pension authorised under the Rajasthan Service Rules.

(e)

"Form" means a form appended to these rules.

(f)

"Government" means the Government of Rajasthan.

(g)

"Head of Office" means a gazetted officer declared as such by the Heads of Department under Rule 3 of General Financial & Account Rules.

(h)

"Medical authority" means a medical authority referred to in rule 20.

(i)

"pension" means any class of pension referred to in Chapter XX of Rajasthan Service Rules.

(j)

"Pension Rules" means pension rules contained in Rajasthan Service Rules, Volume I-Part B.

(k)

"Table" means a Table appended to these rules.

(2)

The words and expressions used in these rules but not defined shall have the meanings respectively assigned to them in the Rajasthan Service Rules.

Chapter-II General Conditions

4.

Restriction on commutation of pension.

- No Government servant against whom departmental or judicial proceedings, as referred to in rule 170 of Rajasthan Service Rules, have been instituted before the date of his retirement, or the pensioner against whom such proceedings are instituted after the date of his retirement, shall be eligible to commute a fraction of his provisional pension authorised under rule 170A of Rajasthan Service Rules or the pension, as the case may be, during the pendency of such

proceedings.

5.

Limit on commutation of pension.

- A Government servant shall be entitled to commute for a lump sum payment a fraction not exceeding one third of his pension.

(2)

In an application for Commutation in Form 1 or, Form 2, as the case may be, an applicant shall indicate the fraction of pension which he desires to commute and may either indicate the maximum limit of one-third of pension or such lower limit as he may desire to commute.

(3)

If fraction of pension to be commuted results in fraction of rupee, such fraction of a rupee shall be ignored for the purpose of commutation.

6.

Commutation of pension to become absolute.

(1)

The commutation of pension shall become absolute in the case of an applicant referred to :-

(i)

in sub-rule (1) of rule 12 on the date on which the application in Form 1 is received by the Head of Office;

(ii)

in Chapter IV, on the date on which the medical authority signs the medical report in Part III of Form 4;

Provided that:-

(a)

in the case of an applicant who is drawing his pension from a treasury, the reduction in the amount of pension on account of commutation shall be operative from the date of receipt of the commuted value of pension or at the end of three months after issue of authority by the Chief Pension Officer for the payment of commuted value of pension, whichever is earlier, and

(b)

in the case of an applicant who is drawing pension from a branch of a nationalised bank, the reduction is the amount of pension on account of commutation shall be operative from the date on which the commuted value of pension is credited by the bank to the applicant's account to which pension is being credited.

(2)

In the case of an applicant referred to in rule 9, the commuted value is paid in two stage. The reduction in the amount of pension shall be made from the respective dates of the payments as laid down in clause (a) or clause (b) of the Proviso to sub-rule (1).

(3)

The date on which the payment of the commuted value of pension was made to the applicant or the commuted value was credited to the applicant's account shall be entered in both halves of the Pension Payment Order by the disbursing authority under intimation to the [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17-1-1984 w.e.f. 1-12-1983.]

who authorised the payment of commuted value of pension.

7.

Death of an applicant before receiving the commuted value.

- If an applicant dies without receiving the commuted value on or after the date on which commutation became absolute, the commuted value shall be paid to his heirs.

8.

Calculation of commuted value of pension.

- The lump sum payable to an applicant shall be calculated in accordance with the Table of the values prescribed from time to time and applicable to the applicant on the date on which commutation becomes absolute.

9.

Retrospective revision of final pension.

- An applicant who has commuted a fraction of his pension and after commutation his pension has been revised and

enhanced retrospectively as a result of Government's decision, the applicant shall be paid the difference between the commuted value determined with reference to enhanced pension and the commuted value already authorised. For the payment of difference the applicant shall not be required to apply a fresh.

Chapter-III Procedure for commutation of pension without medical examination

10.

Scope.

- The provisions of this Chapter shall apply to an applicant who is eligible to commute a fraction of his pension without medical examination.

11.

Eligibility.

- An applicant who is authorised:

(i)

a superannuation pension under rule 239 of Rajasthan Service Rules; or

(ii)

a retiring pension under rule 243 of Rajasthan Service Rules; or

(iii)

a pension on absorption in or under a corporation or company or body in terms of Government of Rajasthan decisions below rule 158 of Rajasthan Service Rules and who elects to receive monthly pension and death-cum-retirement gratuity; or

(iv)

a compensation pension on abolition of permanent post under rule 215 of Rajasthan Service Rules; or

(v)

a pension in whole or in part on the finalisation of the departmental or judicial proceedings referred to in rule 170 of Rajasthan Service Rules and issue of final orders thereon; shall, subject to the limit in rule 5, be eligible to commute a fraction of his pension without medical examination:

Provided that he applies for commutation of pension in Form I before the expiry of one year from the date of retirement and obtain receipt from the Head of office.

12.

Application for commutation of pension.

(1)

An applicant, who is eligible to commute a fraction of pension shall-

(a)

apply to the Head of Office in Form I after the date of his retirement;

(b)

ensure that the application in Form I, duly completed, is delivered to the Head of Office as early as possible but not later than one year of the date of his retirement:

Provided that in the case of an applicant :-

(a)

referred to in clause (iii) of rule 11, where order retiring him from Government service had been issued from a retrospective date, the period of one year referred to in this sub-rule, shall reckon from the date of issue of the retirement orders;

(b)

referred to in clause (v) of rule 11, the period of one year referred to in this sub-rule shall reckon from the date of the issue of the orders consequent on the finalisation of the departmental or judicial proceedings.

(2)

An applicant who applies for commutation of pension within one year of the date of his retirement but his application in Form I is received by the Head of Office after one year of the date of his retirement, shall not be eligible to get his pension commuted without medical examination. Such an applicant, if he desires to commute a fraction of his pension shall apply a fresh in Form 2 in accordance with the procedure laid down in Chapter IV.

13.

Action to be taken by the Head of Office on application for commutation of pension.

(1)

The Head of Office on receipt of application in Form I under sub-rule (1) of rule 12 shall :-

(a)

initial the Form indicating the date of its receipt;

(b)

acknowledge immediately the receipt of Form I in Part II of that Form and despatch the same to the applicant;

(c)

take immediate action to complete Part III of Form I and forward the same to the [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17-1-1984 w.e.f. 1-12-1983.]

after retaining one copy for his record.

(2)

In case application in Form I is received by the Head of Office under sub-rule (1) of rule 12 after one year of the date of retirement of the applicant, the Head of Office shall inform the applicant that:-

(a)

he shall not be eligible to commute a fraction of pension without medical examination,

(b)

if he desires to get a fraction of the pension commuted, he should apply a fresh in Form 2 so that arrangements for medical examination are made in accordance with the procedure laid down in Chapter IV.

14.

Authorisation of commuted value by the [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17-1-1984 w.e.f. 1-12-1983.]

(1)

The [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17-1-1984 w.e.f. 1-12-1983.]

on receipt of Form I from the Head of Office shall verify that-

(a)

information furnished by the Head of Office in Part III of Form I is correct;

(b)

the applicant is eligible to commute a fraction of his pension without medical examination;

(c)

the commuted value of pension has been determined correctly by the Head of Office.

(2)

The [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17-1-1984 w.e.f. 1-12-1983.]

after necessary verification of the information furnished in Form I shall-

(a)

issue authority for the payment of commuted value of Pension of the disbursing authority concerned;

(b)

draw the attention of the disbursing authority concerned to the proviso to sub-rule (1) of rule 6 so that the disbursing authority may make entry in the Pension Payment Order regarding the date on which the amount of pension is to be reduced on account of commuted part of pension:

(c)

endorse to the applicant a copy of the authority referred to in clause (a) with the instruction that he should collect the commuted value of pension from the disbursing authority.

Chapter-IV Procedure for commutation of Pension after medical examination

15.

Scope.

- The provisions of this Chapter shall apply to an applicant who is eligible to commute fraction of his pension after medical examination.

16.

Eligibility.

- An applicant who-

- (i) retires on invalid pension under rule 228; or
- (ii) is compulsorily retired from service as penalty and is granted pension under rule 172A of Rajasthan Service Rules; or
- (iii) is in receipt of compassionate allowance under note below rule 172 of Rajasthan Service Rules; or
- (iv) has retired from service on one of the pensions referred to in rule 11 but his application for commutation has not been received by the Head of Office within one year of his retirement, shall be eligible to commute a fraction of his pension subject to the limit specified in rule 5 after he has been declared fit by the appropriate medical authority.

17.

Application for commutation of pension.

- An applicant referred to in rule 16 shall apply to the Head of Office in Form 2 for commutation of a fraction of his pension.

18.

Action to be taken by the Head of Office on application for commutation of pension.

(1)

The Head of Office on receipt of application in Part I of Form 2 under rule 17 shall-

(a)

acknowledge immediately the receipt of Form 2 in Part II of that Form and despatch the same to the applicant;

(b)

forward Form 2 in original to the [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17-1-1984 w.e.f. 1-12-1983.]

in Part III of that Form with the request that Part IV of that Form may be completed immediately and returned to him as early as possible so that action for getting the applicant examined by the appropriate medical authority is taken.

(2)

The [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17-1-1984 w.e.f. 1-12-1983.]

on receipt of Form 2 from the Head of Office under sub-rule (1) shall complete Part IV of that Form and transmit the same to the Head of Office as early as possible.

(3)

The Head of Office on receipt of Form 2 from the [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17-1-1984 w.e.f. 1-12-1983.]

under sub-rule (2) shall address in Form 3 the Superintendent of Government hospital/Chief Medical Officer as the case may be where the applicant desires to be medically examined and forward to him the following documents :-

(i)

Form 2 with Part IV of that Form duly completed in original;

(ii)

two copies of the applicant's photograph of which one shall be an attested copy;

(iii)

a copy of Form 4 with a spare copy of Part III of that Form;

(iv)

report or statement of the applicant's case if he has been granted invalid pension or has previously commuted a part of his pension or declined to accept commutation on the basis of an addition of year to his actual age or has been refused commutation on medical grounds.

(4)

A copy of letter in Form 3 addressed to Superintendent of Government Hospitals/Chief Medical & Health Officer as the case may be shall be endorsed to the applicant and the [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17-1-1984 w.e.f. 1-12-1983.]

by the Head of Office.

19.
Action to be taken by the Superintendent of a Government Hospital/Chief Medical & Health Officer.

(1)
The Superintendent of a Government Hospital/ Chief Medical & Health Officer on receipt of documents referred to in sub-rule (3) of rule 18 shall-

(a)
arrange as far as possible for the medical examination of the applicant by the medical authority at the nearest available station indicated by the applicant in Form 2;

(b)
transmit the documents referred to in sub-rule (3) of rule 18 to the medical authority with the direction to examine the applicant as provided in rule 23;

(c)
inform the applicant as to where and when he should appear for medical examination or if necessary direct the medical authority to communicate to the applicant the date and time of such examination.

(2)
In fixing the date of medical examination, it shall be ensured that the medical examination is held, as far as possible, before the date of applicant's next birthday.

20.
Medical Authority.

(1)
Save as otherwise provided in sub-rule (2), the medical authority shall be a Medical Board, where an applicant for commutation of pension :-

(a)
seeks commutation of invalid pension, or
(b)
has been refused commutation on medical grounds or if he having once declined to accept commutation on the basis of addition of years to his actual age recommended by the medical authority, applied for a second medical examination in accordance with the provisions of rule 24.

(2)
In any other cases not covered by sub-rule (1) the medical authority shall be a medical officer not lower in status than that of a Civil Surgeon or Chief Medical Officer.

21.
Fee for medical examination to be borne by the applicant.
- The applicant shall be required to pay for medical examination such fee as may be specified by the Government.

22.
Failure to appear before medical authority.
- If the applicant after receipt of communication from the Superintendent of a Government Hospital or Chief Medical & Health Officer or the medical authority referred to in clause (b) of sub-rule (1) of rule 19 fails to appear for medical examination before the medical authority on the date and time communicated to him (including any change therein either at the request of the applicant or due to administrative reasons) and there is no reasonable ground for his failure, the medical authority shall report the fact to the Head of Office concerned and return to him the documents on expiry of a period of a fortnight.

(2)
With the return of documents to the Head of Office under sub-rule (1), the application for commutation shall be treated as having been withdrawn.

23.
Procedure for Medical Examination.

(1)
The medical authority shall-

(a)

obtain from the applicant a statement in Part I of Form 4 duly signed by the applicant in its presence;

(b)
subject the applicant to medical examination and enter the result thereof in Part II of Form 4;

(c)
attest the unattested copy of the photograph of the applicant;

(d)
complete the certificate contained in Part III of Form 4;

Provided that where-

(i)
an Applicant has been granted invalid pension, or

(ii)
an applicant has previously commuted a part of his pension, or

(iii)
an applicant has been refused commutation of medical grounds, or

(iv)
an applicant had declined to accept the commutation on the basis of addition of years to his actual age, the medical authority shall, before completing the certificate contained in Part III of Form 4, take into consideration the statement of the medical case of the applicant.

(2)
After complying with the requirements of sub-rule (1), the medical authority shall without delay forward to the [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17-1-1984 w.e.f. 1-12-1983.]

who has already completed Part IV of Form 2, the following documents, namely:-

(a)
Form 2 in original,

(b)
attested copy of the applicant's photograph,

(c)
Form 4 in original, and

(d)
a certified copy of Form 4 to the Head of Office who has countersigned Part IV of Form 2.

(3)
The medical authority shall also send to the applicant a certified copy of Part III of Form 4.

24.

Second Medical Examination.

(1)
The medical examination in the case of an applicant referred to in clause (b) of sub-rule (1) of rule 20 shall take place after the expiry of a period of not less than one year from the date of first medical examination.

(2)
If the applicant desires to be re-examined on the expiry of the period specified in sub-rule (1), the examination shall be by a Medical Board at his own expense. For this purpose he shall address a letter to the Head of Office with the request that arrangements for his re-examination by a Medical Board may be made. He shall indicate in the letter :-

(i)
the medical authority which examined him earlier, and the date on which such examination took place,

(ii)
the place where he was examined,

(iii)
the opinion of the medical authority,

(iv)
the date of birth and the date of retirement,

(v)

designation of the post held at the time of retirement.

(vi)

the amount of pension authorised,

(vii)

the fraction of pension which was originally applied for commutation.

(3)

The Head of Office on receipt of letter under sub-rule (2) shall address the Superintendent of a Government Hospital/Chief Medical & Health Officer for arranging re-examination of the applicant by a Medical Board and forward the following documents to such authority :-

(i)

letter in original received from the applicant,

(ii)

the certified copy of Form 4 received earlier by the Head of Office from the medical authority under clause (b) of sub-rule (2) of rule 23.

(4)

The Superintendent of a Government Hospital/Chief Medical & Health Officer on receipt of the communication from the Head of Office under sub-rule (3) shall inform the applicant as to where and when he should appear for medical examination before the Medical Board or if necessary direct the Medical Board to communicate to the applicant the place, date, and time of such examination.

(5)

The applicant after the receipt of communication under sub-rule (4) shall appear before the Medical Board at the place and on the date and time communicated to him.

(6)

The Medical Board shall examine the applicant and if after the examination it is of the view that the earlier opinion of the medical authority needs no revision or modification or needs revision or modification shall record its opinion and communicate the same to the Head of Office under intimation to the applicant. The documents received by the Medical Board under sub-rule (3) shall also be returned to the Head of Office.

(7)

If as a result of the opinion of Medical Board received by the Head of Office under sub-rule (6), the applicant becomes eligible to commute a fraction of pension originally applied for, the Head of Office shall determine the commuted value with reference to the Table applicable on the date, the Medical Board recorded its opinion. The Head of Office thereafter shall request the [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17-1-1984 w.e.f. 1-12-1983.]

to take further action for the authorisation of the commuted value and forward the following documents to him :-

(i)

letter in original received from the applicant under sub-rule (2).

(ii)

the opinion of the Medical Board received under sub-rule (6) in original,

(iii)

calculation sheet showing the commuted value determined with reference to the revised or modified opinion of the Medical Board.

(8)

The [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17-1-1984 w.e.f. 1-12-1983.]

on receipt of the documents under sub-rule (7) shall verify the correctness of the commuted value determined by the Head of office and thereafter take action to authorise the commuted value to the applicant under intimation to the Head of Office.

25.

Withdrawal of Application.

(1)

The applicant may after giving notice in writing, to the Head of Office, withdraw his application at any time before

subjecting himself to medical examination before the medical authority but in no case after he has appeared before such authority.

(2)

In case the medical authority directs that the applicant's age for the purpose of commutation shall be assumed to be greater than his actual age, the applicant may,

(a)

by giving notice in writing to the Head of Office withdraw his application within fourteen days from the date on which he receives the certified copy of Part III of Form 4 and endorse a copy of notice to the [Director, Pension Department]
[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17-1-1984 w.e.f. 1-12-1983.]

, or

(b)

request the Head of Office within the period specified in clause (a) under intimation to the [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17-1-1984 w.e.f. 1-12-1983.]

that he may be permitted to reduce the amount of pension already applied for commutation to an amount to be indicated by the applicant.

(3)

Where a request for withdrawal has not been made by the applicant within the time specified in clause (a) of sub-rule (2), it shall be presumed that he has accepted the findings of the medical authority and the [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17-1-1984 w.e.f. 1-12-1983.]

shall take action to authorise the payment of commuted value of pension.

(4)

If a request for reduction in the amount of pension to be commuted is made as provided in clause (b) of sub-rule (2), the [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17-1-1984 w.e.f. 1-12-1983.]

shall authorise the payment of commuted value of pension with reference to the reduced amount.

(5)

If the applicant is informed by the [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17-1-1984 w.e.f. 1-12-1983.]

under rule 26 that on account of modification of the Table, the commuted value becoming payable to the applicant will be less than the value communicated to him in Form 3, it shall be open to the applicant to withdraw his application by a written notice addressed to the [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17-1-1984 w.e.f. 1-12-1983.]

and the applicant shall endorse a copy of the notice to the Head of Office within fourteen days of the date on which he receives intimation of such modification.

26.

Modification in the value specified in the Table.

(1)

In case the value specified in the Table is modified at any time before the commutation becomes absolute in terms of clause (ii) of sub-rule (1) of rule 6, the payment shall be made in accordance with the value so modified.

(2)

Where the commuted value calculated with reference to the Table as modified, is less favourable than the value determined with reference to the Table before it was so modified, the [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17-1-1984 w.e.f. 1-12-1983.]

shall,

(a)

inform the applicant of the revised value and communicate to him the provisions of sub-rule (5) of rule 25, and

(b)

endorse to the Head of Office a copy of the communication issued under clause (a).

27.

Authorisation of Payment of commuted value by the [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17-1-1984 w.e.f. 1-12-1983.]

(1)

Subject to the provisions of sub-rule (2) and sub-rule (3) of rule 25, the [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17-1-1984 w.e.f. 1-12-1983.]

on receipt of the documents, referred to in sub-rule (2) of rule 23, from the medical authority, shall without delay issue an order to the disbursing authority concerned and furnish to it the following particulars and documents, namely:-

(i)

the amount of pension commuted, the amount of commuted value of pension and the date on which the commutation became absolute.

(ii)

the amount of residuary pension,

(iii)

Form 4 in original,

(iv)

copy of the applicant's photograph as attested by the medical authority.

(2)

The [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17-1-1984 w.e.f. 1-12-1983.]

shall also,

(a)

bring to the notice of disbursing authority the provisions of the proviso to sub-rule (1) of rule 6 regarding the date on which the amount of original pension should be reduced;

(b)

endorse to the applicant a copy of the order issued under sub-rule (1) with the remarks that he should collect the commuted value from the disbursing authority; and

(c)

bring to the notice of the applicant the provisions of the Proviso to sub-rule (1) of rule 6.

[Chapter-IV-A]

[Added vide F. D. Order No. F. 1 (24) FD/Gr. 2/81, dated 27.12.1982, with effective from 1.1.1983.]

27A.

Restoration of commutation of Pension.

- [(1) A pensioner who retired from Government service and commuted a part of his pension subject to a maximum of 1/3rd of his original pension under commutation of pension rules as amended from time to time shall be allowed full pension which he would have drawn but for commutation of a portion of pension as indicated below:-

(i)

The portion of pension commuted on or before 31st December, 1968 shall be restored as follows :-

Category

to be restored

(a)

Pensioner who have attained the age of 70 years or more as on 31-12-82.

From 1-1-1983.

(b)

Others i.e. pensioners who have not attained the age of 70 years as on 31-12-1982.

From the first of the month following the month in which they attain the age of 70 years.

(ii)

In the case of pensioners who have commuted a portion of pension on or after 1-1-1969, that portion shall be restored

from the first of the month following the month :-

(a)

in which the period of 14 years has elapsed from date of such commutation.

OR

(b)

in which the pensioner has attained the age of 70 years.

WHICHEVER IS LATER

(iii)

The restored portion of pension shall not be permitted to be commuted again.]

(2)

[(i) An applicant who is eligible for restoration of commutation of Pension under sub-rule (1) shall apply to the concerned Treasury Officer/Pension Payment Officer in Form No. 5.

(ii)

on receipt of an application for restoration of commutation of pension from the Pensioner, the Treasury Officer/Pension Payment Officer shall ask for the disburser's half from the concerned Bank/Sub-Treasury, in cases where the pensioner draws his pension from Public Sector Bank/Sub-Treasury and shall examine it and authorise full pension as a result of restoration of commuted value of pension and record the same on both halves of Pension Payment Order under his seal and dated signature. The both halves of Pension Payment order will be sent to concerned Bank/Sub-Treasury for disbursement.]

(iii)

[The Treasury Officer/Pension Payment Officer will inform the Director of Pension about the restoration of commuted portion of pension for the purpose of verification and updating the records in the Directorate of Pension.] [[Substituted vide F. D. Notification No. F. 1 (24) FD (Gr.2)/81 dated 19-4-1990 (RSR 19/90) for :-

(iii)

In receipt of application from the Treasury Officer, the Director, Pension Department Rajasthan shall examine it and arrange to issue fresh P.P.O. authorising full pension as a result of restoration of commuted value of pension under Intimation to the pensioner. The both halves of new P.P.O. will be sent to the concerned Treasury Officer for disbursement. The old P.P.O. will be cancelled by drawing cross lines in red ink under the signatures of Treasury Officer.]]

Chapter-V Miscellaneous

28.

Interpretation.

- Where any doubt arises as to the interpretation of these rules, it shall be referred to the Government in the Finance Department for decision.

29.

Power to relax.

- Where any Department of the Government is satisfied that the operation of any of these rules causes undue hardship in any particular case; that Department may, by order for reasons to be recorded in writing, dispense with or relax the requirements of that rule to such extent and subject to such exceptions and conditions, as it may consider necessary for dealing with the case in a just and equitable manner:

Provided that no such order shall be made except with the concurrence of the Finance Department.

30.

Repeal and savings.

(1)

On the commencement of these rules, every rule, regulation contained in Chapter XXVII of Rajasthan Service Rules, Volume I-Part B or order including Office Memorandum (hereinafter referred to in this rule as the old rule) in force immediately before such commencement shall, in so far as it provides for any of the matters contained in these rules, cease to operate.

(2)

Notwithstanding such censer of operation-

(a)

The Rajasthan Civil Services (Commutation of Pension) Rules, 1981

any application for commutation of pension which is pending before the commencement of these rules shall be disposed of in accordance with the provisions of old rules as if these rules had not been made; and

(b)

subject to the provisions of clause (a), anything done or any action taken under the old rules shall be deemed to have been done or taken under the corresponding provision of these rules.

Form-1

[See rules 5 (2), 6 (1), 11, 12 (1) and (2), 13 (1) and (2), 14 (1) and (2)]

Form of Application for Commutation of a Fraction of Pension without Medical Examination.

(To be submitted in duplicate after retirement but within one year of the date of retirement.)

Part I ? To

The.....

(Here indicate the designation and full address of the Head of Office)

Sub: Commutation of Pension without medical examination.

Sir,

I desire to commute a fraction of my pension as indicated below in accordance with the provisions of the Rajasthan Civil Services (Commutation of Pension) Rules, 1981. The necessary particulars are furnished below :-

1. Name (in Block letters).
2. Father's name (also husband's name in the case of a female Government servant).
3. Designation at the time of retirement.
4. Name of Office/Department in which employed.
5. Date of birth (by Christian era.)
6. Date of retirement.
7. Class of pension on which retired.
8. [Fraction of pension proposed to be commuted.]

[The Applicant should indicate the fraction of the amount of monthly pension (subject to a maximum of one third thereof) which he desires to commute and not the amount in rupees.]

9. No. and date of the Pension Payment Order, if issued.

Note: - The payment of commuted value of pension shall be made through the disbursing authority from which pension is being drawn, it is not open to an applicant to draw the commuted value of pension from a disbursing authority other than the disbursing authority from which pension is being drawn.

10. [Disbursing authority for payment of pension.]

[Score out which is not applicable.]

(a)

Treasury/Sub-Treasury (Name and complete address of the Treasury/Sub-Treasury to be indicated).

(i)

Branch of the Nationalised Bank with complete postal address.

(b)

(ii)

Bank Account No. to which monthly pension is being credited each month.

(c)

Pension Payment Officer.

Place

Signature

Date

Postal address.

Part II ? Acknowledgment

Received from Shri.....

(Name)

(Designation)

application in Part I of Form 1 for the commutation of a fraction of pension without medical examination.

Place

Signature

Date

Head of Office

Note: - This acknowledgment is to be signed, stamped and dated and is to be detached from the Form and handed over to the applicant. If the form has been received by the post, it has to be acknowledged on the same date and the acknowledgment sent under registered cover.

Part III ? Forwarded to the [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17.1.1984. Effective from 1.12.1983.]

Rajasthan, Jaipur with the remarks that :-

(i)

the particulars furnished by the applicant in Part I have been verified and are correct;

(ii)

the applicant is eligible to get a fraction of his pension commuted without medical examination;

(iii)

the commuted value of pension determined with reference to the Table applicable at present comes to Rs.....

(iv)

the amount of residuary pension after commutation will be Rs.....

2. It is requested that further action to authorise the payment of the amount of commuted value of pension may be taken as in rule 14 of the Rajasthan Civil Services (Commutation of Pension) Rules, 1981.

3. The receipt of Part I of the Form has been acknowledged in Part II which has been forwarded separately to the applicant on

Place

Signature

Date

Head of Office

Form-2

[See rules 5 (2), 12 (2), 13 (2), 17, 18 (1), (2) and (3), 19 (1) and 22 (2)]

Form of Application for Commutation of pension after Medical Examination by An Applicant referred to in Rule 16 of the Rajasthan Civil Services (Commutation of Pension) Rules, 1981.

(To be submitted in duplicate)

Space for photograph.

To,

The.....

(Here indicate the designation and full address of the Head of Office)

Sub:- Commutation of pension after medical examination.

Sir,

I desire to commute a fraction of my pension in accordance with the provisions of the Rajasthan Civil Services (Commutation of Pension) Rules, 1981. An attested copy of my photograph is pasted on the application and an unattested copy is enclosed. The necessary particulars are furnished below :-

1. Name (in Block letters)

2. Father's name (and also husband's name in the case of a female Government servant).

3. Designation.

4. Name of Office/Department in which employed.

5. Date of birth (by Christian era).

6. Date of retirement.

7. Class of pension on which retired (see Chapter XX of the Rajasthan Service Rules).

8. Amount of pension authorised.

9. [Fraction of pension proposed to be commuted.]

[The Applicant should indicate the fraction of the amount of monthly pension (subject to a maximum of one third thereof) which he desires to commute and not the amount in rupees.]

10. No. and date of the Pension Payment Order, if issued.

11. [Disbursing authority for payment of pension.]

[Score out which is not applicable.]

(a)

Treasury/Sub-Treasury (Name and complete address of the Treasury/Sub-Treasury to be indicated).

(b)

(i)

Branch of the Nationalised Bank with complete postal address.

(ii)

Bank Account No. to which monthly pension is being credited each month.

(c)

Pension Payment Officer.

12. Approximate date from which commutation is desired to have effect.

13. The amount of pension already commuted, if any.

14. Preference for station where medical examination is desired to take place.

Place

Signature

Date

Postal Address.....

Note: - The payment of commuted value of pension shall be made through the disbursing authority from which pension is being drawn, it is not open to an applicant to draw the commuted value of pension from a disbursing authority other than the disbursing authority from which pension is being drawn.

Part II ? Acknowledgment

Received from Shri.....

(Name)

(Designation)

application in Part I of Form 2 for commutation of a fraction of pension after medical examination.

Place

Signature

Date

Head of Office

Part III ? Forwarded to the [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17.1.1984. Effective from 1.12.1983.]

Rajasthan, Jaipur with the remarks that the particulars furnished by the applicant in Part I have been verified and are correct and the applicant is eligible to get a fraction of his pension commuted after medical examination.

2. It is requested that Part IV of the Form may be completed and returned to this Office as early as possible.

Place

Signature

Date

Head of Office

Part IV ? (To be completed by the [Director, Pension Department])

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17.1.1984. Effective from 1.12.1983.]

)

1. Name of applicant.

2. Date of birth (by Christian era).

3. Date of retirement.

4. Amount of pension.

5. Class of pension. (See Chapter XX of the Rajasthan Service Rules).

6. Amount of pension, desired to be commuted.

On the basis of Normal Added year age 1 Yr. 2 Yrs.

7.

(i) Sum payable if commutation becomes absolute before the

applicant's next birth day, which falls on.....

(ii) Sum payable if commutation becomes absolute after the applicant's next birth day which falls on.....

8. The Head of Account to which the commuted value is debitable.

9. Number of enclosures, if any (See Note below).

Note: - The [Director, Pension Department]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17.1.1984. Effective from 1.12.1983.]

Rajasthan, Jaipur should enclose with the Form a copy of the report or statement of the applicant's case if the applicant has been granted pension or has previously commuted a part of his pension or declined to accept commutation on the basis of an addition of years to actual age, or has been refused commutation on medical grounds.

Place

Signature of the [Director,
Pension Department.]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17.1.1984. Effective from 1.12.1983.]

Rajasthan, Jaipur.

Date

Countersigned

(Head of Office)

full

address.

Form-3

[See rule 20 (3) and (4) and 28 (5)]

Form of Letter to the Superintendent of a Government Hospital Chief Medical and Health Officer.

No.....

Government of Rajasthan

.....(Department)

Dated the.....

To,

.....

.....

.....

Sub: Medical Examination-Commutation of Pension.

Sir,

Shri.....who retired.....from service on... as(Designation) has applied for commuting a fraction of his pension for a lump sum payment.

The following documents are forwarded herewith :-

(a)

Application in Form 2 in original together with :-

(ii)

An unattested copy of the applicant's photograph,

(iii)

Part IV of Form 2 in original duly completed by the [Director, Pension Department,]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17.1.1984. Effective from 1.12.1983.]

Rajasthan, Jaipur.

(b)

A copy of Form 4 with a spare copy of Part III of that Form.

(c)

Report of the statement of the applicant's case if he has been granted invalid pension or has previously commuted a fraction of his pension or has declined to accept commutation on the basis of addition of years to his actual age or has been refused commutation on medical grounds.

2. In terms of rule 20 of the Rajasthan Civil Services (Commutation of Pension) Rules, 1981, Shri..... should be

examined by a Medical Board/Medical Officer now lower than the rank of Civil Surgeon or a Chief Medical Officer. It is requested that arrangement may be made to get Shri..... examined as expeditiously as possible before his next birth day which falls on.....

3. It is requested that arrangements for medical examination by the medical authority indicated in para 2 above may be made at the nearest available station mentioned by Shri..... in his application in Form 2. The attention of the Medical authority may be drawn to the provisions of rule 23 of the Rajasthan Civil Services (Commutation of Pension) Rules, 1981.

4. It is requested that Shri..... may be informed direct under intimation to this Department/Office as to where and when he should appear before the appropriate authority for medical examination. A copy of this letter is being endorsed to him so that he may comply with your instructions on hearing from you.

5. The receipt of this letter may please be acknowledged.

Yours faithfully,

(Head of Office)

Copy forwarded to Shri (here give complete postal address) with the remarks that subject to the medical authority recommending commutation, he will on the basis of the report of the [Director, Pension Department] [Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17.1.1984. Effective from 1.12.1983.]

, Rajasthan, Jaipur, be eligible for the lump sum payment in lieu of the amount of pension to be commuted as follows :

On the basis of Normal Added year age 1 Yr. 2 Yrs.

(i) Sum payable if commutation becomes absolute before the applicant's next birth day, which falls on.....

(ii) Sum payable if commutation becomes absolute after the applicant's next birth day which falls on.....

The Table of the present value, on the basis of which the calculation by the [Director, Pension Department.,]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17.1.1984. Effective from 1.12.1983.]

Rajasthan, Jaipur has been made, is subject to alteration at any time without notice and consequently the basis are liable to revision before payment is made. The sum payable will be the sum appropriate to the applicant's age on his birth day next after the date on which the commutation becomes absolute or if the medical authority directs that years will be added to that age, to the consequent assumed age.

Shri.....should report for medical examination to the medical authority direct on hearing from..... He should take with him the enclosed Form 4 with the particulars required in part I completed except the signature or thumb or finger impressions.

Place

Signature

Date

Head of Office

Copy forwarded to the [Director, Pension Department,]

[Substituted vide F. D. Notification No. F. 1 (45) FD/Gr. 2/83, dated 17.1.1984. Effective from 1.12.1983.]

Rajasthan, Jaipur with reference to his letter number.....dated.....

Signature

Head of Office

Form-4

[See rule 6 (1), 18 (3), 23 (1), (2) and (3), 24 (3), 25 (2) & 27 (1)]

Medical Examination by the.....

(here enter the medical authority)

Part I ? The applicant must complete this statement prior to his examination by the (here enter the medical authority) and must sign the declaration appended thereto in the presence of that authority.

1.

Name of the applicant (in Block letters).

2.

Date of birth (by Christian era)

3.

Place of birth.

4.

Particulars regarding parents, brothers and sisters :-

{|

Father's age if living and state of health.

Father's age at death & cause of death.

Number of brothers living, their ages and state of health.

Number of brothers dead, their ages at death and cause of death.

1

2

3

4

Mother's age if living and state of health.

Mother's age at death and cause of death.

Number of sisters living, their ages and state of health.

Number of sisters dead, their ages at death and causes of death.

5

6

7

8

| -

| 5.

| Have you ever been examined,

|

| -

|

| (a)

| for Life Insurance, or/and

|

| -

|

| (b)

| by any Government Medical Officer or Medical Board.

|

| -

| 6.

| Have you been granted or considered for grant of invalid pension? If so, state the ground thereof.

|

| -

| 7.

| Have you ever been granted leave on medical certificate during the last five years?

|

| -

|

| If so, state periods of leave and nature of illness.

- |
- | -
- | 8.
- | Have you ever-
- |
- | -
- |
- | (a)
- | Had small-pox, intermittent or any other fever, enlargement on suppuration of glands, spitting of blood, asthma, inflammation of lungs, pleurisy, heart disease, fainting attacks, rheumatism appendicitis, epilepsy, insanity, or other nervous disease, discharge from or other disease of the year, syphilis or gonorrhea; or
- |
- | -
- |
- | (b)
- | had any other disease or injury which required confinement to bed, or
- |
- | -
- |
- | (c)
- | undergone any surgical operation, or
- |
- | -
- |
- | (d)
- | suffered from any illness, wound or injury sustained while on active service.
- |
- | -
- |
- | (e)
- | Presence of albumin or sugar in urine
- |
- | -
- | 9.
- | Present state of health:
- |
- | -
- |
- | (a)
- | Have you a hernia?
- |
- | -
- |
- | (b)
- | Have you varicocoele, varicose vein or piles?
- |

|-

|

| (c)

| Is your vision in each eye good (with or without glasses)?

|

|-

|

| (d)

| Is your hearing in each year good?

|

|-

|

| (e)

| Have you any congenital or acquired malformation, defect or deformity?

|

|-

|

| (f)

| Have you lost or gained weight markedly during the last three years?

|

|-

|

| (g)

| Have you been under treatment of any doctor within last three months and nature of illness for which such treatment was taken?

|

|}

Declaration by applicant

(To be signed in the presence of the medical authority)

I declare all the above answers to be, to the best of my belief, true and correct.

I am fully aware that by wilfully making a false statement or concealing a relevant fact, I shall incur the risk of losing the commutation I have applied for and of having my pension withheld or withdrawn under rule 169 of the Rajasthan Service Rules.

Applicant's signature or thumb impression

in case of illiterate applicant.

Signed in present of and designation of medical authority.

Part II ? (To be filled in by the examining medical authority)

1.

Apparent age.

2.

Height.

3.

Weight.

4.

Describe any scars or identifying marks of the applicant.

5.

Pulse rate,

(a) sitting

(b) standing

What is the character of pulse?

6.

Blood Pressure-

(a) Systolic

(b) Distolic

7.

Is there any evidence of disease of the main organs?

(a) Heart

(b) Lungs

(c) Liver

(d) Spleen

(e) Kidney

8.

Investigations -

(i) Urine

|

State specific gravity

(ii) Blood

|

?

?

(iii) X-Ray Chest

(iv) E.C.G.

9.

Has the applicant a hernia?

If so, state the kind and if reducible.

10.

Any additional finding.

Part III ? I/we have carefully examined Shri/Shrimati/Kumari and am/are of opinion that-

He/ she is in good bodily health and has the prospect of an average duration of life.

OR

He/she is not in good bodily health and is not a fit subject for commutation.

OR

Although he/she is suffering from he/she is considered a fit subject for commutation but his/her age for the purpose of commutation i.e. the age next birth day should be taken to be..... (in words) years more than his/her actual age.

Station:

Signature and designation of examining medical authority.

Date

[Form-5]

[Substituted vide F.D. Notification No. F. 1 (24) FD/(Gr. 2)/81, dated 19.4.1990 (RSR 19/90)]

Application for Restoration of Commutation of Pension

(See Rule 21 A)

(To be submitted by Pensioner to PPO/TO)

To

The Pension Payment Officer/T.O.

.....

.....

Subject:- Restoration, of Commutation of Pension.

Sir,

I apply for restoration of commuted value of pension on attaining the age of 70 years or completion of 14 years from the

date of commutation as required by Rule 27-A of the Rajasthan Civil Services (Commutation of Pension) Rules, 1981.
The required particulars are given below :-

1. (i) Name of pensioner with father's Name.

(ii)

Present address.

2. Name of Department & Post last held.

3. Date of retirement and class of pension on which retired.

4. (i) Date on which he attained the age of 70 years.

(ii)

Age on the date of retirement.

(iii)

Date of commutation.

(iv)

Date from which restoration is required.

5. P.P.O. No.

(Pensioner's portion of P.P.O. enclosed in original).

6. Original amount of pension sanctioned.

7. Amount of pension commuted.

8. Name of Treasury/Sub. Treasury/Bank from which the pension is being drawn.

I certify that the particulars given above are correct.

Yours faithfully,

Signature.....

Name.....

P.P.O. No.....

Dated.....

Previous Position

Before substitution The Form -5 was as under:-

Form-5

Application for Restoration of Commutation of Pension.

[See Rule 27A]

(To be submitted by Pensioner to Director, Pension Department through concerned Treasury Officer)

To,

The Director, Pension Department

Rajasthan, Jaipur

Subject: Restoration of Commutation of Pension.

Sir,

I apply for restoration of commutation value of pension on attaining the age of 70 years on..... as required by Rule 27A of the Rajasthan Civil Services (Commutation of Pension) Rules, 1981. The required particulars are given below :-

1. (i) Name of pensioner with father's name.

(ii)

Present address.

2. Name of Department & Post last held.

3. Date of retirement and class of pension on which retired.

4. (i) Date on which he attained the age of 70 years.

(ii)

Age on the date of retirement.

(iii)

Date of commutation.

5. P.P.O. No.

(Pensioner's portion of P.P.O. enclosed in original).

6. Original amount of pension sanctioned.

7. Amount of pension commuted.

8. Name of Treasury/Sub-Treasury/Bank from which the pension is being drawn.

I certify that the particulars given above are correct.

Yours faithfully.

Signature

(Name)

P.P.O. No.....

Dated.....

(Certificate to be given by the Treasury Officer/Pension Payment Officer)

No.

Date

It is certified that-

(1)

the pensioner has personally appeared before me and presented this application.

(2)

the contents of the application have been verified from treasury record and are correct.

Signature of Treasury Officer/

Pension Payment Officer.

Table

[See rules 8, 24(7), 25(5) and 26(1) and (2)]

Commutation values, for a pension of Re.1 per mensem.

Age next birth day.

Commutation value expressed as number of years
purchase.

1

2

17

19.28

18

19.20

19

19.11

20

19.01

21

18.91

22

18.81

23

18.70

24

18.59

25

18.47

26

18.34

27

18.21

28

18.07

29

17.93
30
17.78
31
17.62
32
17.46
33
17.29
34
17.11
35
16.92
36
16.72
37
16.52
38
16.31
39
16.09
40
15.87
41
15.64
42
15.40
43
15.15
44
14.90
45
14.61
46
14.37
47
14.10
48
13.82
49
13.54
50
13.25
51
12.95
52
12.66
53
12.35
54
12.05

55
11.73
56
11.42
57
11.10
58
10.78
59
10.46
60
10.13
61
9.81
62
9.48
63
9.15
64
8.82
65
8.50
66
8.17
67
7.85
68
7.53
69
7.22
70
6.91
71
6.60
72
6.30
73
6.01
74
5.72
75
5.44
76
5.17
77
4.90
78
4.65
79
4.40
80

4.17

81

3.94

82

3.72

83

3.52

84

3.32

85

3.13

[[Substituted vide F. D. Notification No. F. 1 (24) FD (Gr.2)/81 dated 19-4-1990 (RSR 19/90) for :-

'(2) (i) An Applicant who is eligible for restoration of commutation of pension under sub-rule (1) shall apply to the Director, Pension Department through the Treasury Officer In Form No. 5.

(ii)

in receipt of an application for commutation from the pensioner the Treasury Officer shall, after scrutiny forward it to the Director, Pension Department alongwith 'pensioner's half' and 'disburser's half'. In oases where pensioner draws his pension from authorised Public Sector Banks the Treasury Officer shall obtain original 'disburser's half' from the concerned Bank.]]

[Substituted vide F. D. Notification No. F. 1 (24) FD/Gr. 2/81, dated 29.11.1983. Effective from 1.1.1983.]

Related AI tags, queries and research notes

Translation